

complaint

Miss W has complained that Tesco Underwriting Limited 'Tesco' rejected a claim she made under her car insurance policy. She's also unhappy with the service it provided. Mr J, Miss W's partner is helping her with her complaint.

background

In December 2018 Miss W told her insurer, Tesco that her house had been broken into and both their house and car keys were stolen. Miss W said her partner's car was stolen but her car hadn't been.

Miss W had key care benefit under her policy. Tesco said arrangements were made for a locksmith to contact Miss W but in the meantime she was advised to safeguard her car. Three days later Miss W's car was stolen from outside her home.

Tesco rejected her claim as it said she failed to take reasonable steps to protect her car. It accepted it had failed to call Miss W back when promised to explain the claims process. Tesco apologised for its poor service and gave feedback to the agent involved. However, three working days later, Tesco told Miss W about its decision to reject her theft claim.

Our investigator thought that overall Tesco had dealt with Miss W's complaints reasonably.

Miss W and Mr J didn't agree. So the case has been passed to me to decide.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I don't intend to uphold it. I'll explain why.

Miss W and Mr J have raised a further complaint which the investigator explained hasn't been dealt with by Tesco Underwriting Limited. So this doesn't form part of my decision.

Miss W and Mr J say it isn't fair that Tesco gave examples of ways Miss W could have secured her car after it rejected her theft claim. They feel this is something Tesco should have done before.

But I think it's reasonable to expect a consumer to take appropriate steps to safeguard a car to prevent its theft while waiting for a locksmith. In this case, Miss W and Mr J were aware that the thief had a key for Miss W's car and knew where the car was usually kept. Miss W was using the spare car key so she was able to access her car to put additional locks on it – or move it to a safe location. Miss W provided a photo to show her car was kept behind a wall – and they said they put bins in front of the car. The wall is low and so Miss W's car can be easily seen. And I don't think the measures Miss W and Mr J described would be considered reasonable steps to prevent a thief with the car key from stealing it from outside their home. So I think Tesco's decision to reject the theft claim was made in a fair and reasonable way.

I think Tesco provided a poor service in failing to call Miss W to explain the claims process when it said it would. But on balance, I think its apology and the feedback it gave to the agent was enough to put things right here.

It told Miss W of its decision to reject the claim three working days after she reported the theft. So I can't say the short delay in calling her back made a difference to the outcome – and I think Tesco dealt with the claim promptly.

I understand Miss W and Mr J will be disappointed. But taking everything into account, I don't think Tesco acted unreasonably. So I'm not asking it to do anymore.

my final decision

For the reasons I've given above, my final decision is that I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Miss W to accept or reject my decision before 6 December 2019.

Geraldine Newbold
ombudsman